

Fair Housing Act Summary

U.S. Department of Housing and Urban Development (HUD) – 2025

The Fair Housing Act is a federal law that protects people from discrimination when they rent, buy, or secure financing for housing. It applies to most housing in the United States and is enforced by the U.S. Department of Housing and Urban Development (HUD).

Under the Fair Housing Act, it is illegal to discriminate based on race, color, national origin, religion, sex (including gender identity and sexual orientation), familial status (having children under 18), or disability. This protection covers all aspects of housing, including advertising, rental terms, application processes, financing, and eviction decisions.

For example, a landlord cannot refuse to rent to someone because they are Black, Muslim, pregnant, or use a wheelchair. They cannot charge higher deposits to families with children or deny housing to same-sex couples. Advertisements cannot state preferences like “ideal for single professionals” or “no kids,” as these imply discrimination.

People with disabilities have additional rights. Landlords must allow reasonable modifications to the unit (like installing grab bars) at the tenant’s expense, and they must make reasonable accommodations in rules or policies—such as allowing a service animal in a “no pets” building or assigning a reserved parking space near the entrance.

If you believe you’ve been discriminated against, you can file a complaint with HUD within one year of the incident. HUD will investigate at no cost to you. You may also file a lawsuit in federal court. Retaliation for filing a fair housing complaint is illegal.

Many states and cities have their own fair housing laws that offer broader protections—for example, covering source of income (like housing vouchers), marital status, or veteran status. Always check local ordinances in addition to federal law.

HUD provides free assistance through its Fair Housing Assistance Program (FHAP). Call 1-800-669-9777 or visit hud.gov/fairhousing for guidance.